

**IN THE CIRCUIT COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA**

**COLONIAL MANOR MHC
HOLDINGS, LLC,**

Plaintiff,

vs.

CASE NO.: 2021-CA-4553

LORI SKIPPER,

Defendant.

**RESPONSE IN OPPOSITION TO DEFENDANT'S MOTION FOR PROTECTIVE
ORDER AND INJUNCTIVE RELIEF**

Plaintiff, Colonial Manor MHC Holdings, LLC ("Colonial Manor" or "Plaintiff"), through its undersigned counsel files this Response in Opposition to Defendant's Motion for Protective Order and Injunctive Relief (the "Motion"). In support thereof, Colonial Manor states as follows:

Background

1. On or about December 29, 2021, Defendant filed a Motion for Protective Order and Injunctive Relief.
2. The Motion seeks an injunction against Colonial Manor to prevent Colonial Manor, its "agents, employees, and specifically Cheryl Peake" from contacting Defendant and other unknown individuals she identifies as "associates, roommates, or friends."
3. Defendant's Motion is generally unclear, but contains broad references to Florida Criminal Code section 914.22 (tampering with or harassing a witness) and a full copy of the section is inserted into the Motion. As a result, Colonial Manor has interpreted this Motion as an improper

application to the court to issue a temporary restraining order pursuant to Florida Statute section 914.24.

4. Defendant's Motion must be denied because Defendant does not have standing to seek a temporary restraining order pursuant to Florida Statute section 914.24.¹

5. Furthermore, Defendant's Motion must be denied because Defendant has failed to properly allege intentional infliction of emotional distress.

Argument

I. Defendant Lacks Standing

Defendant appears to allege in her Motion that she has been harassed as a witness to a court action and, as such, Colonial Manor has violated Florida Statute section 914.22. Florida Statute section 914.22 is a criminal statute providing penalties for a person who knowingly uses intimidation or physical force, threatens or attempts to threaten a person, engages in misleading conduct, or offers pecuniary benefit to another person to otherwise tamper with a witness, victim, or informant. § 914.22(1), Fla. Stat. (2022). In turn, it would appear that Defendant is seeking a temporary restraining order prohibiting the harassment of Defendant and her unknown "associates, roommates, or friends" pursuant to Florida Statute section 914.24.

¹ It must be noted that Defendant is currently appearing *pro se* in this matter while also living within the Colonial Manor Mobile Home Park community that is managed by Colonial Manor. Therefore, even if Defendant brought a proper motion for temporary injunction (which Colonial Manor expressly denies), it is unclear to Colonial Manor how Defendant intends to continue appearing *pro se* while refusing to interact with Colonial Manor's agents (the undersigned counsel), or continue living at Colonial Manor Mobile Home Park while refusing to interact with Colonial Manor's employees and current resident manager, Cheryl Peake, who is responsible for customer relations, rent collection, evictions, rule enforcement, and interacting with Colonial Manor's residents – including Defendant.

Defendant's Motion is simply improper, and she lacks standing to bring a motion for temporary restraining order pursuant to Chapter 914. Section 914.24 requires that "upon application of the state attorney" a circuit court shall issue a temporary restraining order "prohibiting the harassment of a victim or witness in a criminal case if the court finds, from specific facts shown by affidavit or by verified complaint, that there are reasonable grounds to believe that harassment of an identified victim or witness in a criminal case exists or that such order is necessary to prevent and restrain an offense..." § 914.24(1)(a), Fla. Stat. (2022).

Defendant's Motion is clearly not an application by the state attorney as required by the statute.² Furthermore, Defendant is once again attempting to raise criminal issues in a civil action where no criminal issues are at issue. No private right of action exists for Defendant under this criminal statute. "Criminal statutes provide no basis for civil liability." *Kerr v. Wells Fargo Bank*, No. 2:15-cv-327-FtM-38MRM, 2015 WL 8042272, *4 (M.D. Fla. Dec. 7, 2015) (*citing Otto v. Hillsborough Cnty., Fla.*, No. 8:12-cv-1515, 2013 WL 2456095, *4 (M.D. Fla. June 6, 2013)). As a result, Defendant lacks standing to enforce this penal statute and, "[o]nly a federal or state prosecutor can file a criminal charge against a person or entity." *Id.* Therefore, Defendant's Motion must be denied.

II. Defendant Fails to State a Claim for Intentional Infliction of Emotional Distress

Defendant also alleges intentional infliction of emotion distress; however, it is unclear what other relief (if any) Defendant seeks on this basis. As a result, Colonial Manor addresses

² To that end, it is unnecessary for Colonial Manor to address the merits of Defendant's alleged claims of stalking, spreading false rumors, or harassment. However, Colonial Manor notes that Defendant's Motion fails to allege any facts that constitute stalking or harassment as defined by Florida law.

Defendant's claims separately to erase any doubt as to whether all allegations in the Motion have been responded to by Colonial Manor.

Intentional infliction of emotional distress is also known as "outrageous conduct causing severe emotional distress" and "essentially involves the deliberate or reckless infliction of mental suffering on another, even if unconnected to any other actionable wrong." *Dominguez v. Equitable Life Assurance Soc'y of the U.S.*, 438 So. 2d 58, 59 (Fla. 3d DCA 1983) (citation omitted). The elements are: "(1) the wrongdoer's conduct was intentional or reckless, that is, he intended his behavior when he knew or should have known that emotional distress would likely result; (2) the conduct was outrageous, that is, as to go beyond all bounds of decency, and to be regarded as odious and utterly intolerable in a civilized community; (3) the conduct caused the emotional distress; and (4) the emotional distress was severe." *Id.*

Importantly, a plaintiff must allege that the defendant engaged in outrageous behavior. *Thomas v. City of Palm Coast*, No. 3:14-cv-172-J-32PDB, 2015 WL 7429051, at *4 (M.D. Fla. Nov. 23, 2015). "Behavior is only outrageous where it is so extreme, so atrocious, and so beyond all bounds of decency, that it is utterly intolerable in a civilized community." *Id.* In *Thomas*, the court held that "[m]aliciously issuing repeated code enforcement violations against a property is not sufficiently outrageous to form a claim for intentional inflict of emotional distress." *Id.* (also stating that an unlawful intrusion by a police officer into a plaintiff's home and the false arrest of plaintiff does not qualify as intentional infliction of emotional distress).

Here, Defendant has clearly failed to allege any conduct that is outrageous enough to state a claim for intentional infliction of emotional distress. Indeed, the conduct alleged here – receiving one (1) Courtesy Lot/Home Observation Notice and viewing the property manager on the property outside of her working hours – does not reach the level of outrageousness in *Thomas*, which the

court held insufficient to state a claim for intentional infliction of emotional distress. Defendant's allegations are wholly insufficient and Defendant continues to use her claims as an opportunity to air her general grievances against Colonial Manor. Therefore, Defendant's Motion must be denied in full.

WHEREFORE, Plaintiff/Counter-Defendant Colonial Manor requests that this Court deny Defendant/Counter-Plaintiff Lori Skipper's Motion and grant any other such further relief as may be deemed appropriate by this Court.

Respectfully submitted this 7th day of January, 2022.

/s/ Jordann Wilhelm

JORDANN WILHELM (FBN: 1003182)

E-mail: jwilhelm@radeylaw.com

Secondary E-mail: lsmith@radeylaw.com

CHRISTOPHER B. LUNNY (FBN: 0008982)

E-mail: clunny@radeylaw.com

Secondary E-mail: kellis@radeylaw.com

Radey Law Firm

301 South Bronough Street, Suite 200

Tallahassee, Florida 32301

Telephone: (850) 425-6654

Facsimile: (850) 425-6694

Counsel for Plaintiff,

Colonial Manor MHC Holdings, LLC

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true and correct copy of the foregoing has been served by electronic mail to Lori Skipper at lorilyn1985@gmail.com, and U.S. Mail to 900 9th Ave. East, Palmetto, FL 34221 on this 7th day of January, 2022.

/s/ Jordann Wilhelm

JORDANN WILHELM